

23CHCV02132 23CHCV02132

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Case Number: 23CHCV02132 Hearing Date: September 24, 2026 Dept: F49

Dept. F49

Date: 9/24/26

Case Name: Matias Lopez Cruz; Hermalinda Miguel Lopez

vs. City of San Fernando; Maclay Ave Investments, LLC; Omar Lopez; Gabriela Lopez; Edgar Lopez; and Does 1-50

Case No. 23CHCV02132

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 24, 2026

MOTION FOR SUMMARY

JUDGMENT

Los Angeles Superior

Court Case No. 23CHCV02132

Motion filed: 12/22/25

MOVING PARTY: Defendant Maclay Ave Investments, LLC

RESPONDING PARTY: Plaintiffs Matias Lopez Cruz and
Hermalinda Miguel Lopez

NOTICE: OK

RELIEF REQUESTED: An order from this Court granting Defendant
Maclay Ave Investments, LLC's motion for summary judgment.

TENTATIVE RULING: The Motion is DENIED.

BACKGROUND

This action arises from an accident that occurred on January 12, 2022, when Plaintiff Hermalinda Miguel Lopez ("Hermalinda") was struck while crossing 8th Street at the intersection of North Maclay Avenue in San Fernando, California. Lopez subsequently died at the hospital the same day. On July 19, 2023, Plaintiffs Matias Lopez Cruz ("Cruz") and Hermalinda, by and through her successor in interest, Cruz (collectively, "Plaintiffs"), filed the Complaint against Defendants City of San Fernando, Maclay Investments, LLC ("Maclay"), Omar Lopez ("Omar"), Gabriela Lopez, Edgar Lopez ("Edgar"), and Does 1 through 50, alleging premises liability. On May 21, 2025, at the request of Plaintiffs, Omar and Edgar were dismissed from the Complaint. On March 22, 2024, City of San Fernando and Maclay filed their respective Answers to the Complaint.

On March 22, 2024, City of San Fernando filed a Cross-Complaint against Maclay, Cross-Defendant Manuel Hector Gomez ("Gomez"), and Roes 1 through 10, alleging apportionment of fault, indemnification, and declaratory relief.

On December 22, 2025, Maclay filed the instant motion for summary judgment (the "Motion").

On September 4, 2026, Plaintiffs filed an Opposition.

On September 11, 2026, Maclay filed a Reply.

ANALYSIS

“A

party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c(a)(1).)

“The

motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., § 437c, subd. (c).)¿

The

moving party “bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) To meet that burden, the moving party must present evidence sufficient to show they are entitled to summary judgment as a matter of law. (Code Civ. Proc., § 437c, subds. (c) & (f)(2).)

“In

order to prevail on a motion for summary judgment, a defendant must either disprove an essential element of the plaintiff’s cause of action or prove an affirmative defense that would bar such cause of action.” (Velasquez v. Truck Insurance Exchange (1991) 1 Cal.App.4th 712, 717.) A defendant may shift the burden of proof by introducing the plaintiff’s factually devoid discovery responses. (Union Bank v. Super. Ct. (1995) 31 Cal.App.4th 573, 590.) Once the burden shifts in this manner, “the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact.” (Ibid.)

Any

doubts are resolved against the moving party, “on the ground that summary judgment is a drastic remedy and deprives a party against whom it operates of his day in court.” (Pasadena City Fire Fighters Assn. v. Board of Directors (36 Cal.App.3d 901, 906.)

The pleadings serve as the “outer measure of materiality” in a summary judgment motion, delimiting the scope of the issues that may be triable. (FPI Development, Inc. v. Nakashima (1991), 231 Cal.App.3d 367, 381.) A defendant moving for summary judgment accordingly need only respond to the allegations in the complaint. (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258.)

A.

Request for Judicial Notice

The Court may take judicial notice of the following: “ ... (b) Regulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States. ... (h) Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452.) The Court must take judicial notice of the foregoing matters if a party requests it and furnishes the Court with sufficient information to enable it to take judicial notice. (§ 453.)

Maclay requests that the Court take judicial notice of the following:

(1)

that the City of San Fernando owns the roadway at Maclay Avenue within the boundaries of the City of San Fernando at and around 1203 North Maclay Avenue;

(2)

that the City of San Fernando owns the roadway at 8th Street within the boundaries of the City of San Fernando and adjacent to the property at 1203 North Maclay Avenue and where the accident at issue in this lawsuit took place;

(3)

that the City of San Fernando owns the sidewalks at and around the property located at 1203 North Maclay Avenue; and

(4)

that the City of San Fernando has enacted the following ordinances: Code of Ordinances Section 6-1 ("Posting in public places."), Sec. 74-199 ("Painting or marking sidewalk."), Section 90-205 ("Prohibited in specified places."), and Section 90-210 ("Curb markings.").

Plaintiffs contend that ownership of the noted roadways and sidewalks is not subject to judicial notice because ownership is disputed. (Opp'n, at p. 17.) Plaintiffs, however, do not seem genuinely to dispute ownership of the roadways. In response to Maclay's Separate Statement of Undisputed Material Facts, Plaintiffs indicate that material facts pertaining to ownership are "Undisputed," but state that evidence creates an inference that the sidewalk is included within Maclay's property line, seemingly a contention concerning control. (Undisputed Material Fact ("UMF") Nos. 6-9.) Nevertheless, the requests are based on City of San Fernando's discovery responses, which the Court does not find are "sources of reasonably indisputable accuracy" within the meaning of the Evidence Code section 452, subdivision (h).

As to the ordinances passed by City of San Fernando, the Court finds those to be proper subjects of judicial notice. Maclay's request for judicial notice is therefore GRANTED IN PART. The Court takes notice that City of San Fernando has enacted the foregoing ordinances.

Plaintiffs request that the Court take judicial notice of their Exhibit F, a parcel map depicting the boundaries at North Maclay Avenue and 8th Street in San Fernando, California, publicly available at the Los Angeles County Office of the Assessor's public portal. The Court finds the parcel map to be noticeable under Evidence Code section 452, subdivision (h). Plaintiff's request for judicial notice is GRANTED.

B.

Motion for Summary Judgment

Plaintiffs allege a single cause of action for premises liability against Maclay. (Compl., at p. 5.) The cause of

action is grounded in negligence. (Id., at p. 5, ¶ Prem.L-2.)

Hermalinda's death allegedly resulted when a driver traveling southwest on North Maclay Avenue made a wide right turn onto 8th Street to avoid a parked vehicle and struck her in the crosswalk. (Compl., at p. 6, Attach. 1.) The parked vehicle, a large truck with a camper shell, was parked on 8th street very close to the edge of the intersection. (Ibid.) Plaintiffs allege that Maclay had remodeled the business at 1203 North Maclay Avenue between 2019 and 2021, constructing improvements to the adjacent sidewalk in an unsafe manner that permitted vehicles to park dangerously near the street corner. (Ibid.) Plaintiffs allege that the curb lacked red paint markings indicating that vehicles could not park near the intersection, and that parking in the manner that the truck did was foreseeable to Maclay. (Ibid.)

Plaintiffs' responses to Maclay's special interrogatories confirm this theory of liability. Plaintiff's responses indicate that Plaintiffs' contention that Maclay was negligent is based on Maclay's alteration of a portion of the sidewalk that allowed vehicles "to park dangerously close to the street corner without any marked red curbs" and creating "a hazardous condition and a visual distraction for right-turning vehicles." (Bordin-Wosk Decl., Exh. 6, at p. 3.)

Maclay contends that Plaintiffs cannot establish that it owed a duty to Hermalinda because it does not own, lease, occupy, or otherwise control the property where the accident occurred, and the State of California and City of San Fernando have assigned the duty to paint the curb and to control parking to the City of San Fernando. (Mot., at pp. 6-8.) Maclay further contends that it had no authority to paint the curb or control parking. (Id., at p. 7.) Maclay bears the initial burden of producing evidence.

(1)

Relevant Standard

To prevail on a claim for premises liability, a plaintiff must establish: (1) a legal duty of care, (2) breach of that duty, and (3) proximate cause resulting in injury. (Kesner v. Super. Ct. (2016) 1 Cal.5th 1132, 1158.) The duty in a premises liability case arises from the tortfeasor's possession of the premises and the "attendant right to control conditions on the premises," and is the duty to adhere to the

same standard that applies in general negligence cases. (*Ibid.*) Specifically, that duty is to take reasonable measures to protect persons on the land from dangerous conditions. (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156.)

Determination of whether the possessor of property owes a duty requires evaluation of the following factors: (1) the foreseeability of harm to the plaintiff, (2) the degree of certainty that the plaintiff suffered injury, (3) the closeness of the connection between the defendant's conduct and the injury suffered, (4) the moral blame attached to the defendant's conduct, (5) the policy of preventing future harm, (6) the burden to the defendant and the consequences to the community of imposing a duty, and (7) the availability, cost, and prevalence of insurance for the risk involved. (*Kesner*, *supra*, 1 Cal.5th, at p. 1143.)

Possessors of land also may also be liable to persons injured offsite, if the land is maintained in such a way as to expose persons to an unreasonable risk of offsite injury. (*Kesner*, *supra*, 1 Cal.5th, at p. 1159.)

Where public roadways are concerned, "[i]t is the general rule that in the absence of a statute a landowner is under no duty to maintain in a safe condition a public street abutting upon his property. [Citation.]" (*Sexton v. Brooks* (1952) 39 Cal.2d 153, 157.) An abutting owner is liable, however, for the condition of the property if he has exercised control over it or has created the dangerous condition. (*Alcaraz*, *supra*, 14 Cal.4th, at p. 1161.) An abutting owner owes a duty, for example, where he has created the dangerous condition by constructing or altering public property for his own benefit and in a way that causes the public property to "serve a use independent of and apart from the ordinary and accustomed use for which [the public property] is designed." (*Sexton*, *supra*, at p. 157.)

(2)

Maclay's Initial Burden

Maclay first contends that Plaintiff cannot establish that Maclay owed a duty because Maclay does not own, lease, occupy, or control the property where the accident occurred. (*Mot.*, at p. 6.) In support, Maclay offers the declaration of its Chief Executive Officer, Nidal Azzi ("Azzi"), and portions of the verified discovery responses of City of San

Fernando.

Azzi attests that Maclay owns and operates a gas station located at 1203 North Maclay Avenue, San Fernando, California, adjacent to the crosswalk where the accident occurred. (Azzi Decl., ¶ 2.) Azzi disclaims any ownership or control of the roadways or sidewalks on 8th Street and North Maclay Avenue. (Id., ¶¶ 9-12.)

City of San Fernando, in verified discovery responses, admits ownership of the relevant roadways and sidewalks. In response to Maclay's Special Interrogatories, Set One and Requests for Admission, Set One, City of San Fernando identifies itself as the owner of the 8th Street and North Maclay Avenue roadways adjacent to 1203 North Maclay Avenue, and admits that it also owned the sidewalks around 1203 North Maclay Avenue. (Bordin-Wosk Decl., Exh. 7, at p. 9; Exh. 8, at pp. 2-3, 5.) Maclay thus produces evidence that it did not own the roadway where Hermalinda was struck or the adjacent sidewalks.

Lack of ownership, however, is not dispositive. (Alcaraz, supra, 14 Cal.4th, at p. 1158 ["[A] defendant who lacks title to property still may be liable for an injury caused by a dangerous condition on that property if the defendant exercises control over the property."].) Control alone is sufficient to create a duty. (Ibid.)

Maclay contends that it did not control the sidewalks or curb because it did not have authority to mark the curb or post signage warning drivers of the parked-car hazard (Mot., at p. 7.) Again, Maclay cites the discovery responses of City of San Fernando in support. In response to requests pertaining to the authority to regulate street parking around 1203 North Maclay Avenue, City of San Fernando indicates that it "has the authority to promulgate parking regulations," and Maclay does not have any police or municipal enforcement powers. (Bordin-Wosk Decl., Exh. 8, at pp. 4-6.)

Maclay also points to the Vehicle Code and City of San Fernando municipal codes, which assign the duty to regulate parking and mark curbs to the City of San Fernando. Pursuant to Vehicle Code section 21351, "[l]ocal authorities in their respective jurisdictions shall place and maintain or cause to be placed and maintained such traffic signs, signals and other traffic control devices upon streets and highways as required

hereunder, and may place and maintain or cause to be placed and maintained, such appropriate signs, signals or other traffic control devices as may be authorized hereunder or as may be necessary properly to indicate and to carry out the provisions of this code or local traffic ordinances or to warn or guide traffic." San Fernando Code of Ordinances section 90-205 requires the city engineer to sign or mark the approaches to crosswalks to prevent vehicles stopping, standing, or parking in those places. (Maclay's Request for Judicial Notice ("Def. RJN") No. 6.) And San Fernando Code of Ordinances section 74-199 prohibits any person from marking or painting any sidewalk or roadway without first obtaining permission from the city council. (Def. RJN No. 5.) Together, these provisions establish that parking regulation and traffic control are the province of City of San Fernando and not of Maclay.

Lack of control over traffic signage and other devices and over parking regulation, however, does not negate all theories of duty raised in the Complaint. The Complaint alleges that a foreseeable driving hazard was created by Maclay when it renovated its property at 1203 North Maclay Avenue, creating additional areas where vehicles would foreseeably park that distracted drivers turning onto 8th Street. Creation of a dangerous condition gives rise to a duty separate and apart from ownership, possession, and control of property. (Sexton, *supra*, 39 Cal.2d, at p.157.) Maclay does not address this theory of duty at all in its moving papers, which disclaim duty solely on the grounds of lack of ownership and lack of authority to erect signage and mark the curb.

Based on the foregoing, the Court finds that Maclay has not met its burden of establishing the nonexistence of any triable fact.

The Motion is accordingly DENIED.

CONCLUSION

The Court DENIES Defendant Maclay Avenue Investments, LLC's motion for summary judgment.

Moving party to give notice.